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Case Number: 25STCV19698 Hearing Date: August 10, 2026 Dept: 224

TENTATIVE RULING

Defendants' special motion to strike is GRANTED. The first and second causes of action are stricken, and the Complaint is stricken in its entirety.

Defendants have satisfied the first prong as to both causes of action. Plaintiffs have not demonstrated a probability of prevailing on either.

Introduction

On July 3, 2025, Plaintiffs Neil A. Stiller and Kimberly A. Stiller filed the Complaint in this action.

On September 15, 2025, Defendants Chicago Title Insurance Company, Fidelity National Law Group, and Karen Ragland filed the instant Special Motion to Strike, directed at the Complaint in its entirety.

On July 28, 2026, Plaintiffs filed an opposition.

On August 3, 2026, Defendants filed a reply.

Request for Judicial Notice

Defendants request judicial notice, pursuant to Evidence Code sections 451 through 453, of eleven documents attached to the concurrently filed declarations of Kevin Sinclair, Karen Ragland, and John L. Jackson.

Plaintiffs request judicial notice of eighteen documents, each attached to the Complaint and to the concurrently filed Compendium of Exhibits and authenticated by the Declaration of Aaron J. Flores.

Defendants' Request for Judicial Notice, seeking notice of Exhibits A through K, is GRANTED. Plaintiffs' Request for Judicial Notice, seeking notice of Exhibits 1 through 19, is GRANTED.

Evidentiary Objections

Plaintiff submits objections to the Declarations of John L. Jackson, Amy Peitz, and Karen Ragland in support of Defendants' Special Motion to Strike.

Defendants submit objections to the Declarations of Aaron J. Flores.

The evidentiary objections are OVERRULED.

Legal Standard

Code of Civil Procedure section 425.16 provides in pertinent part as follows:

"(b)(1) A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."

(Code Civ. Proc. 425.16(b)(1).) A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., "lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances." (Code Civ. Proc. 425.16(a).) An anti-SLAPP motion may be used to strike allegations of protected activity, even if the motion does not defeat the entire cause of action. (*Baral v. Schnitt* (2016) 1 Cal.5th 375, 385-390, disapproving *Mann v. Quality Old Time Service, Inc.* (2004) 120 Cal.App.4th 90 and its progeny).

In assessing a defendant's section 425.16 special motion to strike, the court must engage in a two-step process. (*Shekhter v. Financial Indem. Co.* (2001) 89 Cal.App.4th 141, 150.) First, the court must decide whether the defendant has met the threshold burden of showing that the plaintiff's cause of action arises from the defendant's constitutional rights of free speech or petition for redress of grievances. (*Id.*) This burden may be met by showing the act which forms the basis for the plaintiff's cause of action was an act that falls within one of the four categories of conduct set forth in 425.16(e).

The four categories, generally speaking, include: "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (Code Civ. Proc., § 425.16(e).) Speech or conduct that falls under categories (1) and (2) does not have to be connected to a public issue, while speech and conduct falling under categories (3) and (4) must be in connection with a public issue. (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1117 (differentiating CCP 425.16, subdivision (e), clauses (1) and (2) from same section and subdivision, clauses (3) and (4)); *Commonwealth Energy Corp. v. Investor Data Exchange, Inc.* (2003) 110 Cal.App.4th 26, 32 (citing *Briggs*).)

If the defendant meets the initial burden, the burden then shifts to the plaintiff to establish a probability that the plaintiff will prevail on the claim. (*Shekhter supra* 89 Cal.App.4th at 151.) To meet this burden, the plaintiff "must demonstrate that the complaint is both legally sufficient and supported by a prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89; internal quotations omitted.)

Special Motion to Strike

Defendants Chicago Title Insurance Company, Fidelity National Law Group, and Karen Ragland move under Code of Civil Procedure section 425.16 to strike the Complaint in its entirety, comprising the first cause of action for malicious prosecution and the second cause of action for abuse of process.

First Prong

Defendants first argue that Plaintiff's claims arise from protected activity under section 425.16. Plaintiffs concede the point and state that the motion turns entirely on the second prong. (Opposition, 10:11-12.) The Court agrees that the first prong is satisfied, and briefly states the basis.

"To prevail on an anti-SLAPP motion, the movant must first make 'a threshold showing the challenged cause of action' arises from an act in furtherance of the right of petition or free speech in connection with a public issue." (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 192.) "A claim arises from protected activity when that activity underlies or forms the basis for the claim." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062.) This burden may be met by showing the act which forms the basis for the plaintiff's cause of action was an act that falls within one of the four categories of conduct set forth in 425.16(e).

"By definition, a malicious prosecution suit alleges that the defendant committed a tort by filing a lawsuit." (Jarrow Formulas, Inc. v. LaMarche (2003) 31 Cal.4th 728, 735.) Accordingly, "every Court of Appeal that has addressed the question has concluded that malicious prosecution causes of action fall within the purview of the anti-SLAPP statute." (Id.) The first cause of action arises from the filing and maintenance of the Recoupment Action and is squarely within section 425.16(e)(1) and (2).

The second cause of action is an Abuse of Action claim that is likewise protected. (See Maleti v. Wickers, 82 Cal. App. 5th 181, 298 Cal. Rptr. 3d 284 (2022); S.A. v. Maiden, 229 Cal. App. 4th 27, 176 Cal. Rptr. 3d 567 (2014).) Its allegations are that Defendants "instituted the Second Action for an ulterior purpose" and that the "filing of a spurious and unfounded lawsuit, and/or the maintaining [of] such action until final adjudication by a bench trial was an improper act and an abuse of the judicial process." (Complaint ¶¶ 149, 153-154.)

Defendants have carried their threshold burden as to both causes of action. The burden shifts.

Second Prong

Once a defendant has established that the Anti-SLAPP statute applies, the burden shifts to the plaintiff to demonstrate a "probability" of success on the merits. (Code Civ. Proc., §425.16(b); Equilon Enters. LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67.) "To establish a probability of prevailing, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. For purposes of this inquiry, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant; though the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. In making this assessment it is the court's responsibility...to accept as true the evidence favorable to the plaintiff [...]. The plaintiff need only establish that his or her claim has minimal merit to avoid being stricken as a SLAPP." (Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291.)

Because malicious prosecution and abuse of process are distinct torts, Plaintiffs must make the required prima facie showing on the elements of each. (S.A. v. Maiden, supra, 229 Cal.App.4th at 41-42.) A showing on one does not carry the other.

Malicious Prosecution

To establish the tort of malicious prosecution, a plaintiff must plead three elements: that a lawsuit "(1) was commenced by or at the direction of the defendant and was pursued to a legal termination favorable to the plaintiff; (2) was brought without probable cause; and (3) was initiated with malice. [Citation.]" (Nunez v. Pennisi (2015) 241 Cal.App.4th 861, 872-873.)

As to favorable termination, this element is satisfied. To be considered "favorable" for purposes of a malicious prosecution action, a termination in the underlying action "must reflect the merits of the action and the plaintiff's innocence of the misconduct alleged in the lawsuit." (Staffpro, Inc. v. Elite Show Services, Inc. (2006) 136 Cal.App.4th 1392, 1399.) "The key is whether the termination reflects on the underlying defendant's innocence. (Id.) If the resolution of the underlying litigation leaves some doubt as to the defendant's innocence or liability it is not a favorable termination, and bars that party from bringing a malicious prosecution action against the underlying plaintiff. (Id.) Favorable termination "is an essential element of the tort of malicious prosecution, and it is strictly enforced." (Id.)

The Recoupment Action was resolved by judgment after a three-day bench trial on findings that the claim was precluded, that the underlying obligation had been satisfied, and that Chicago Title paid as a volunteer. (Def. RJN, Ex. H; Pl. RJN, Ex. 16.) That is a determination on the substantive merits. (Casa Herrera, Inc. v. Beydoun (2004) 32 Cal.4th 336, 341-342.)

Defendants contest only probable cause and malice.

The existence or absence of probable cause is a question of law for the Court, determined objectively and without reference to the subjective belief of the attorney or litigant who brought the prior action. (Sheldon Appel Co. v. Albert & Olier (1989) 47 Cal.3d 863, 875, 877-882.) "Probable cause is a low threshold designed to protect a litigant's right to assert arguable legal claims even if the claims are extremely unlikely to succeed." (Plumley v. Mockett (2008) 164 Cal.App.4th 1031, 1047.) A claim lacks probable cause only if "any reasonable attorney would agree [that it is] totally and completely without merit." (Parrish v. Latham & Watkins (2017) 3 Cal.5th 767, 776.) Litigants "have the right to bring a claim they think unlikely to succeed, so long as it is arguably meritorious." (Wilson v. Parker, Covert & Chidester (2002) 28 Cal.4th 811, 822.)

Under the interim adverse judgment rule, a ruling on the merits in favor of the plaintiff in the underlying action establishes probable cause, even if that ruling is later overturned or the party ultimately loses, unless the ruling was obtained by fraud or perjury. (Wilson, supra, 28 Cal.4th at 817-819.) The rule applies to "denial of defense summary judgment motions, directed verdict motions, and similar efforts at pretrial termination of the underlying case." (Parrish, supra, 3 Cal.5th at 776-777.) It does not apply to rulings resting "solely on technical or procedural grounds." (Id. at 778.)

The Court considers each ruling Defendants invoke.

First, the Court considers the January 11, 2021 overruled demurrer. The Court gives this ruling limited weight and does not rest its decision on it. Plaintiffs are substantially correct that the order recites that a demurrer assumes the truth of pleaded allegations, that the court declined to notice the truth of the underlying documents, and that the demurrer was overruled because the FAC "alleges facts sufficient to potentially overcome a res judicata defense." (Def. RJN, Ex. E.) Although an overruled demurrer has been held probative of probable cause, a ruling on the sufficiency of a pleading is a weaker measure of objective tenability than a ruling taken on evidence. (Swat-Fame, Inc. v. Goldstein (2002) 101 Cal.App.4th 613, 626; Roberts v. Sentry Life Insurance (1999) 76 Cal.App.4th 375, 384),

Next, the Court considers the denial of Chicago Title's summary judgment motion. This ruling is not an interim adverse judgment, and the Court does not treat it as evidence of probable cause. Neither does it establish the absence of probable cause. The court's observation that "the statute of frauds would appear to bar Plaintiff's first cause of action as it is dependent upon the validity of the rescission" (Pl. RJN, Ex. 15) addressed a claim Chicago Title dismissed on September 19, 2022 (Def. RJN, Ex. K). The case was tried on the quasi-contract claim alone. Any inference Plaintiffs would draw is further displaced by what followed. Continued prosecution supports liability only where the claim was discovered to lack probable cause. (Zamos v. Stroud (2004) 32 Cal.4th 958, 969.) The rulings that followed confirmed the opposite.

Finally, the Court considers the three denied motions for directed verdict. These rulings are dispositive of the probable cause element. Denying the second motion after supplemental briefing, the court found evidence of privity – describing it as "lacking" in quantity but concluding "[t]here is some evidence there." (Def. RJN, Ex. G at 37:3–38:13.) Denying the third, made after both sides rested, the court found the evidence rose above "speculation, suspicion or conjecture." (Id. at 106:7-13.)

Plaintiffs argue that these denials cannot establish probable cause because they were rendered under a standard requiring all inferences in Chicago Title's favor. The argument is without merit. Every denial of a motion for judgment or directed verdict is rendered under a standard favoring the party with the burden, and that is the precise category of ruling Wilson and Parrish hold the rule encompasses. (Wilson, *supra*, 28 Cal.4th at pp. 818-820; Parrish, *supra*, 3 Cal.5th at pp. 776-777.) Were the favorable-inference standard alone sufficient to defeat the rule, the rule would have no application to directed verdict rulings at all.

Nor were these denials procedural within the meaning of Parrish. Each addressed the substantive question the case turned on, namely whether the Stipulated Judgment and privity between Chicago Title and A&L barred recovery. A judicial finding that "some evidence" supported privity is inconsistent with a finding that no reasonable attorney could have deemed the claim arguable.

The Fraud and False-Evidence Exception

Plaintiffs invoke the exception to the interim adverse judgment rule for rulings procured by fraud or the knowing presentation of false evidence, relying on *Kinsella v. Kinsella* (2020) 45 Cal.App.5th 442. The Court has considered the argument and finds the exception inapplicable on this record.

The document Plaintiffs say was misrepresented – the Stipulated Judgment – was attached to the operative pleading, quoted in Plaintiffs' own demurrer, and judicially noticed at Plaintiffs' request. Where an exhibit contradicts an allegation, the exhibit controls. (*Building Permit Consultants, Inc. v. Mazur* (2004) 122 Cal.App.4th 1400, 1409.) A court cannot be defrauded by a characterization of a document it has in hand and has been asked to read. What Plaintiffs describe is a disagreement about the legal effect of an instrument – the very disagreement the Recoupment Action existed to resolve, and which Plaintiffs ultimately won. Losing that disagreement does not render Chicago Title's position one that no reasonable attorney could have advanced.

The trial court's remark that the procedural history was "quite confounding" reflects the complexity of the *res judicata* question. It does not support an inference of deception.

Malice

Because probable cause is established as a matter of law, the Court does not reach malice.

Based on the foregoing, Plaintiffs have not made a *prima facie* showing of facts sufficient to sustain a favorable judgment on the first cause of action.

Abuse of Process

"The essential elements of abuse of process, as the tort has developed, have been stated to be: first, an ulterior purpose, and second, a wilful act in the use of the process not proper in the regular conduct of the proceeding. Some definite act or threat not authorized by the process, or aimed at an objective not legitimate in the use of the process, is required; and there is no liability where the defendant has done nothing more than carry out the process to its authorized conclusion, even though with bad intentions." (*Spellens v. Spellens* (1957) 49 Cal.2d 210, 232.) The mere filing or maintenance of a lawsuit, even for an

improper purpose, is not a proper basis for an abuse of process action. (*Oren Royal Oaks Venture v. Greenberg, Bernhard, Weiss & Karma, Inc.* (1986) 42 Cal.3d 1157, 1169.)

A plaintiff who alleges only that the defendant filed and maintained meritless proceedings for a malicious purpose has stated a claim for malicious prosecution, and absent an allegation of actual misuse of identified process, there is no viable abuse of process claim. (*S.A. v. Maiden*, supra, 229 Cal.App.4th at 41-42.)

For purposes of this motion, Plaintiffs' evidence of the statement allegedly made to them in the hallway on the third day of trial, together with the surrounding circumstances, suffices to raise an inference of ulterior purpose. (*K. Stiller Decl.* ¶ 44; *N. Stiller Decl.* ¶ 44; *Compl.* ¶ 127.)

However, no willful act in the use of process has been established. The allegations of the second cause of action identify only the filing of the Recoupment Action and its maintenance through judgment. (*Complaint* ¶¶ 149, 153-154.) Under *Oren Royal Oaks* and *S.A. v. Maiden*, that is not sufficient.

The three items Plaintiffs offer in opposition do not support the element. The hallway statement is not a use of process at all. It is a statement about the litigation, and an ulterior purpose without a corresponding misuse of process states no claim. The Peitz declaration was filed in support of a summary judgment motion. Filing a declaration is a step taken within the process and in aid of the objects of the proceeding. That the declaration is alleged to have been unsupported goes to its truth, not to whether the process was employed to obtain something the process was not designed to obtain. The telephonic contact with Ms. Peitz stands on the same footing. Witness examination is a procedure incident to litigation, but the alleged wrong was misconduct during that procedure, not deployment of the procedure to extract a collateral objective; and the underlying court's finding that counsel were unaware the contact was improper defeats willfulness. Misconduct in the performance of those steps is remedied by sanctions. That a procedural act was performed improperly is not the same as a procedural tool being misused for an objective outside its authorized purpose.

Plaintiffs have not identified a willful act in the use of process not proper in the regular conduct of the proceeding.

Based on the foregoing, Plaintiffs have not made a prima facie showing of facts sufficient to sustain a favorable judgment on the second cause of action.

Litigation Privilege

The second cause of action is independently barred by the litigation privilege set forth in Civil Code section 47(b), which provides an absolute privilege for communications. . . . [i]n any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2." "The litigation privilege is . . . relevant to the second step in the anti-SLAPP analysis in that it may present "a substantive defense a plaintiff must overcome to demonstrate a probability of prevailing." (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 323.) The litigation privilege has broad application. (*Hagberg v. California Federal Bank FSB* (2004) 32 Cal.4th 350, 355, 375.) It applies to statements made prior to legal proceedings, or afterwards, if the statements are made in furtherance of the objects of the proceedings. (*Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1272.) In other words, the statements must "be connected with, or have some logical relation to, the [proceeding]." (*Id.* (citing *Hawran v. Hixson* (2012) 209 Cal.App.4th 256, 283.)

"[T]he privilege is "absolute", and bars all tort causes of action except a claim of malicious prosecution." (*Hagberg v. California Federal Bank* (2004) 32 Cal.4th 350, 360; *Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 926-927 [plaintiff must overcome litigation privilege to demonstrate a probability of prevailing under anti-SLAPP prong two].)

Filing declarations, serving process, submitting affidavits to the court, and the examination of witnesses are all considered communicative acts protected by the privilege. (*Rusheen v. Cohen*, 37 Cal.4th 1048 (2006)), (*Rickley v. Goodfriend*, 212

Cal.App.4th 1136 (2013).)

Here, each act on which Plaintiffs' abuse of process claim rests is communicative in nature. The Peitz declaration is a sworn writing submitted to the court in support of a motion. The telephonic contact with Ms. Peitz during her cross-examination, and the statement allegedly made to Plaintiffs in the hallway, are oral statements made during the trial then underway and logically related to the issues before the court. (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.)

The claim is independently barred by the litigation privilege.

Conclusion

Defendants have satisfied the first prong as to both causes of action. Plaintiffs have not demonstrated a probability of prevailing on either.

Defendants' special motion to strike is GRANTED. The first and second causes of action are stricken and the Complaint is stricken in its entirety.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.